

ELEMENTS OF SECTION 32 — WHAT IS, AND IS NOT, IN ISSUE

WC/2024/227 – Cory Lea Shepherd (Appellant) v Workers' Compensation Regulator (Respondent). Prepared for the second conference under s 552A of the *Workers' Compensation and Rehabilitation Act 2003*. Elements as stated at Part 7.3.2 of the Workers' Compensation Appeal Guide. The onus is on the Appellant (Guide 7.3); the standard is the balance of probabilities, applying *Briginshaw*.

Element	What must be shown	What proves it	In issue?
(a) Worker	a worker within the meaning of s 11 of the Act	Employment records; role description (Notice ¶¶ 1 to 13, admitted); movement forms (¶¶ 14 to 15, admitted)	No
(b) Personal injury	that a personal injury was sustained	Dr Krishnaiah, diagnosis 24 Oct 2024 (Tab M3) and report 13 Feb 2025 (Tab M4); Dr Hawes, certificates 1 Jul to 6 Oct 2024 (Tab M2). Review Decision 69983 found "a personal injury of a psychological nature" — ¶ 261, admitted.	Should not be
(c) Arose out of, or in the course of, employment	the connection between the injury and the employment	The course of conduct at Part B.2 of the statement of facts and contentions, on the admitted paragraphs; treating records Tabs M1 to M4. The decision so found — ¶ 262, admitted.	Should not be
(d) Employment a significant contributing factor	that employment was a significant contributing factor — not the major one, and not the only one	Dr Krishnaiah and Dr Hawes orally (Guide 7.6.5); report of 13 Feb 2025, origin "workplace stress stemming from issues with management and rostering"; the baseline at Part B.1 — no diagnosis or treatment for depression before 18 Jun 2024, and no antidepressant, anxiolytic or other psychotropic medication as at 16 May 2024. The decision so found — ¶ 262, admitted.	Possibly
s 32(5)(a) The additional requirement for a psychological injury	that the injury was not connected to management action that was reasonable in the circumstances and/or taken in a reasonable way (Guide 7.3.2)	Contention 4 — circumstances that are not management action at all: the duty imposed while the means of discharging it was held by others; the emergency notifications; the directory entry; the complaints. Contention 5 — if and to the extent they are management action, it was not taken in a reasonable way, measured against EB11 cl 3.2, 9.13.1, 9.14, 7.1.5 and Award cl 15.2, 11, 6.2. The decision found the rostering of 17 and 18 March 2024 to be unreasonable management action — ¶ 260, admitted.	YES — the only live issue

What the Appellant proposes

That elements (a), (b), (c) and (d) be agreed, and that the hearing be confined to section 32(5)(a). Each of (b), (c) and (d) was found by the Respondent's own review officer on 24 October 2024, and the Respondent admitted on 8 September 2026 that the decision so records (¶¶ 260 to 262). The Appellant accepts that the hearing is *de novo* and that those findings do not bind the Commission; they are relied upon as an admitted document. If any of (a) to (d) is in issue, the Appellant asks that it be identified now so that the evidence can be directed to it.

Notes

- "a significant contributing factor".** Section 32(1) requires employment to be a significant contributing factor. The "major significant" test for psychiatric injury was repealed in 2019. Competing causes need not be outweighed; they need only leave employment as a significant contributor.
- Section 32(5)(b) is not in issue.** The Respondent has not pleaded that the injury is connected to the Appellant's expectation or perception of reasonable management action, and the Appellant does not rely on any such matter.
- Clinical opinion.** The Appellant does not rely on the opinion in any medical document otherwise than through the oral evidence of its author (Guide 7.6.5). Dr Ravikumar Bangalore Krishnaiah and Dr Peter Hawes are named at items 2 and 3 of the Appellant's list of witnesses filed 9 September 2026 and will be called.
- The admitted record.** References to ¶ are to the notice to admit facts served 28 August 2026, of which 298 of 303 paragraphs were admitted, and none denied, in the Respondent's response of 8 September 2026. The admissions are made for this proceeding only under rule 49 of the *Industrial Relations (Tribunals) Rules 2011*.